

24TRCV03860 24TRCV03860

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-23

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Case Number: 24TRCV03860 Hearing Date: July 23, 2026 Dept: B

Moving Parties: Defendant Ronald Peak

Responding Party: Plaintiff Bennett R. Georgen

Motion

for Order Confirming the Cross-Complaint is Timely and/or Granting Leave to
Proceed with the Cross-Complaint

The Court considered the moving, opposition, and reply papers.

RULING

The motion is GRANTED.

BACKGROUND

On November

14, 2024, Bennett R. Georgen (self-represented) filed a verified complaint against Ronald Peak and all persons unknown claiming any interest in the property for (1) breach of written agreement, (2) quiet title, and (3) declaratory relief.

On

June 26, 2025, the Court denied defendant's motion to strike as to paras. 9, 11, and 12. The motion was granted without leave to amend as to paras. 26 and 35 and prayer at 5 as to attorney's fees and prayer at 6 as to punitive damages.

The Court ordered plaintiff to file an amended complaint removing the

stricken language.

On

July 3, 2025, plaintiff filed a FAC.

On

December 11, 2025, the Court denied plaintiff's motion for summary judgment.

On

December 24, 2025, plaintiff filed a substitution of attorney, and is represented.

On

February 5, 2026, the Court denied plaintiff's motion for a trial preference.

On

April 28, 2026, the Court granted plaintiff's motion for leave to file a second amended complaint.

On

April 29, 2026, plaintiff filed a second amended complaint for (1) breach of written contract, (2) declaratory relief, (3) foreclosure of vendor's lien (Civil Code §3046), (4) quiet title (subject to vendor's lien), and (5) financial elder abuse.

On

June 1, 2026, defendant filed an answer and cross-complaint for (1) fraud and (2) violation of Bus. and Prof. Code §17200.

LEGAL

AUTHORITY

CCP §426.30(a)

provides, "if a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the plaintiff, such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded."

CCP

§426.50 states that, "A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave . . . to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon terms as may be just to the parties, leave . . . to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith.

This subdivision shall be liberally construed to avoid forfeiture of causes of action."

CCP

§428.10 states that, "A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following: . . . (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him."

CCP §

428.50 states, "(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action."

"If

the proposed cross-complaint is permissive . . . , leave of court may be granted 'in the interest of justice' at any time during the course of the action (CCP

§428.50(c)). On the other hand, if the

proposed cross-complaint is compulsory . . . , leave must be granted so long as defendant is acting in good faith (CCP

§426.50 . . .).” Weil & Brown, Civ. Proc. Before Trial, ¶6:555.

“The

declarations of defendant’s counsel should show that it would be ‘in the interest of justice’ to grant leave to file; and some reasonable excuse why the cross-complaint was not filed earlier (mistake, inadvertence, excusable neglect . . . or most commonly, recent discovery of new facts).” Id., ¶6:562.

DISCUSSION

Defendant Ronald Peak requests an order “confirming” that the cross-complaint was timely and/or granting leave to “proceed” with the cross-complaint.

Defendant asserts that he filed the cross-complaint along with his answer to the second amended complaint in compliance with CCP §428.50(a) and that the code section does not define “complaint” as only the “original” complaint. To the extent he was required to obtain leave of Court, he argues that the cross-complaint is compulsory and that he acted in good faith. Defendant asserts that the complaint and FAC had been limited to a “mere contractual dispute” and that there were no allegations or claims against defendant relate to the 2022 transaction. He contends that after reviewing plaintiff’s discovery responses and in preparing an answer to the SAC “it became clear that Georgen concealed and/or omitted material facts related to the initial transaction involving the Contract and the separate 2022 Transaction, that give rise to Peak’s own claims for fraud against Georgen.”

In opposition, plaintiff argues that the motion “conflates procedural leave with substantive validity,” noting that he has filed a demurrer to the cross-complaint.

In reply, defendant argues that the motion properly requests limited procedural relief.

The Court rules as follows: The cross-complaint is compulsory, and defendant has shown he is acting in good faith.

The motion is GRANTED.

ORDER

The motion is GRANTED.

Defendant

is ordered to give notice of ruling.